

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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DEVAL MOWATT,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
LOYDA MERCADO (Shield # 14553), and
NYPD OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
New York County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 16, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER LOYDA MERCADO (Shield # 14553), Housing Bureau – Police Service Area 5, 221
E 123rd St, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
DEVAL MOWATT,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
LOYDA MERCADO (Shield # 14553), and
NYPD OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiff **Deval Mowatt**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected him to, among other things, false arrest, unlawful search and seizure, federal and state law malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff Deval Mowatt is a resident of the State of New York, Queens County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER LOYDA MERCADO, assigned Shield # 14553, employed with the Housing Bureau of Police Service Area 5, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. Police Officer LOYDA MERCADO (Shield #14553) is being sued in her individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on January 25, 2021.

STATEMENT OF FACTS

15. On August 2, 2019, at approximately 8:10 p.m., inside of 1905 2nd Avenue, Apartment 11E, in New York County, New York, several police officers from the Police Service Area (PSA) 5

Housing Bureau, and other unknown police commands, including upon information and belief, defendant NYPD Officer Loyda Mercado (Shield # 14553), and P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

16. On August 2, 2019 at approximately 8:10 p.m., Plaintiff was inside of his apartment, 1905 2nd Avenue, Apartment 11E, when two uniformed two uniformed defendant NYPD officers, including defendant NYPD Officer Loyda Mercado (Shield #14553), knocked on Plaintiff's apartment door. When Plaintiff opened the door, defendant NYPD Officer Mercado and/or NYPD officer John and Jane Doe immediately entered the apartment with Plaintiff's consent or permission.
17. NYPD defendant officer Loyda Mercado immediately and unjustifiably grabbed Plaintiff by the wrist and did not let go. Officer Mercado maintained her hold on Plaintiff's wrist until he was handcuffed.
18. Plaintiff Mowatt was the lawful tenant of the home and had paid rent for use of the apartment, as well as for utilities including cable television. Prior to August 2, 2019, Plaintiff had no outstanding rent payments and had, in fact, paid the full amount of rent in cash for the month of August 2019. Despite the plaintiff having paid rent and having a legal right to occupy Apartment 11E, defendant officers arrested him for trespass.
19. Once the defendant officers approached and physically grabbed and held Plaintiff, he was not free to leave.
20. Without the consent of the Plaintiff, a warrant, or reasonable suspicion or probable cause that any violation or crime had been committed by the Plaintiff, the defendant officers searched Plaintiff's apartment.
21. Upon information and belief, defendant officers did not take anything from the apartment or collect anything from the search.
22. Despite the fact that the Plaintiff had committed no infractions and had no outstanding warrants, and had a legal right to be in the apartment, Plaintiff was handcuffed and transported to an area precinct, and then to New York Central Booking.
23. While plaintiff was illegally incarcerated at the precinct and New York Central Booking, defendants falsely and maliciously told the New York County District Attorney's Office that Plaintiff had committed the crimes of Criminal Trespass in the Second and Third Degrees and a Trespass violation. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
24. Based on the defendant's false statements, the New York County District Attorney's office chose to prosecute Plaintiff under docket CR-025629-19NY.
25. Plaintiff was incarcerated for approximately 20 hours. During his confinement, plaintiff was subjected to depraved, filthy and inhumane conditions.

26. On August 27, 2020, the above-stated malicious prosecution terminated in plaintiff's favor when the case against him was dismissed and sealed in its entirety.
27. Prior to dismissal, plaintiff attended five court appearances.
28. As a result of being forcefully and illegally removed from the Plaintiff's apartment by the defendant officers, the door to the apartment was secured by NYPD officers and/or New York City Housing Authority in a manner that prevented the Plaintiff from accessing or living therein, despite his having been current on his rental payments. As a direct result of his forcible and illegal eviction from the apartment, Plaintiff was forced to live in a different location in a much less safe area of New York City. Plaintiff was subsequently shot and severely injured in the area of this new home. His injuries required him be wheelchair-bound for a significant period of time. Plaintiff now is forced to use a cane to walk, and continues to receive physical therapy and medical treatment as a result of this gunshot wound.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

29. Plaintiff repeats and alleges paragraphs 1 through 28 as if fully set forth herein.
30. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
31. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
32. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.

35. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
36. Defendants commenced and continued a criminal proceeding against Plaintiff.
37. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
38. The prosecution and criminal proceedings terminated favorably to plaintiff on August 27, 2020.
39. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.
40. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.
44. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
45. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
46. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.

47. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
48. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants owed a duty of care to plaintiff.
51. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
52. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
53. All of the foregoing occurred without any fault by plaintiff.
54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.
56. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
57. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

58. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH, EIGHTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of Fourth, Fifth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's false-arrest/unlawful-search claims (7th claim); malicious-prosecution claim (8th claim).

59. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
61. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
62. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his Fourth, Fifth and Fourteenth Amendment rights.
63. In particular, Plaintiffs allege that Defendants' use of unlawful search and seizure and malicious prosecution violated his Fourth, Fifth, and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of his liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice intent.
64. Insofar as Plaintiff's federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterates the above allegations in support of the federal claims here.
65. In the event Plaintiff prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

NINTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.
67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

68. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions to achieve remunerative ends through overtime, to achieve professional advancement through arrest numbers, and to satisfy personal whims through retaliatory use of their authority.
69. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
70. Similarly, the City of NY is on notice of the obvious risk that their failure to train, discipline and supervise its officers—and in particular these specific Defendants who discovery will show to have been the subject of misconduct allegations that went uncorrected—proximately caused the constitutional violations suffered by Plaintiff here.
71. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
72. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested, subjected to undue force and unlawful search, and prosecuted.
73. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, DEVAL MOWATT, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
August 16, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
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(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER LOYDA MERCADO (Shield # 14553), Housing Bureau – Police Service Area 5, 221
E 123rd St, New York, NY 10035

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
August 16, 2021

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.